

Politicians Help Citizens Access Justice: Evidence from India

International Access to Justice Forum 2025

Saloni Bhogale

PhD Candidate, Department of Political Science

University of Wisconsin–Madison

This paper

- Politicians help citizens overcome legal constraints and bridge the justice gap

This paper

- Politicians help citizens overcome legal constraints and bridge the justice gap
- Quasi-experimental design that assigns additional members to village councils

This paper

- Politicians help citizens overcome legal constraints and bridge the justice gap
- Quasi-experimental design that assigns additional members to village councils

Research Question: Can politicians in village councils improve access to justice?

This paper

- Politicians help citizens overcome legal constraints and bridge the justice gap
- Quasi-experimental design that assigns additional members to village councils

Research Question: Can politicians in village councils improve access to justice?

Main finding: 2x more cases are filed by citizens from councils with additional politicians

Contributions

- Interventions to improve legal mobilization (Acemoglu et al. 2020; Thompson 2023)

Contributions

- Interventions to improve legal mobilization (Acemoglu et al. 2020; Thompson 2023)

This paper → Institutional design, i.e. number of politicians

Contributions

- Interventions to improve legal mobilization (Acemoglu et al. 2020; Thompson 2023)

This paper → Institutional design, i.e. number of politicians

- Local intermediaries in dispute resolution (Galanter 1981; Baldwin and Ricart-Huguet 2023)

Contributions

- Interventions to improve legal mobilization (Acemoglu et al. 2020; Thompson 2023)

This paper → Institutional design, i.e. number of politicians

- Local intermediaries in dispute resolution (Galanter 1981; Baldwin and Ricart-Huguet 2023)

This paper → Focuses on elected members of village bodies

1. Theoretical Framework
2. Context
3. Big Data and Causal Inference
4. Politicians help citizens access justice
5. Mechanisms
6. Discussion

1/ Theoretical Framework

Path to Justice

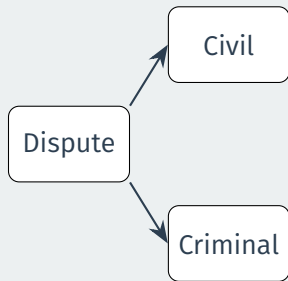
Path to Justice

Dispute

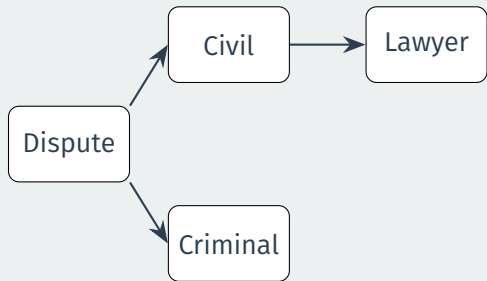
Path to Justice



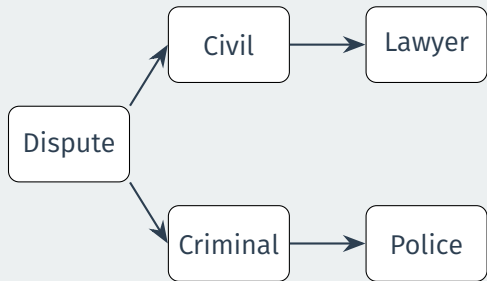
Path to Justice



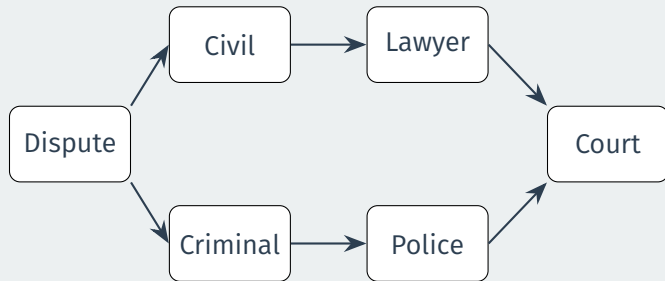
Path to Justice



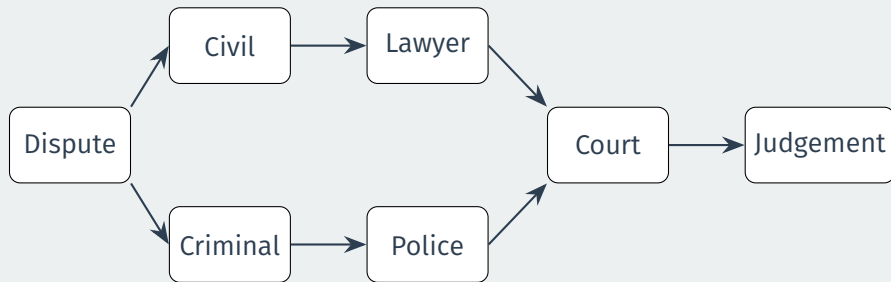
Path to Justice



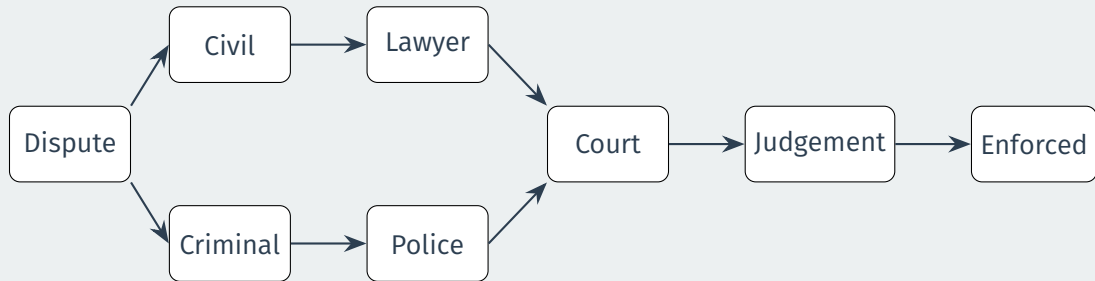
Path to Justice



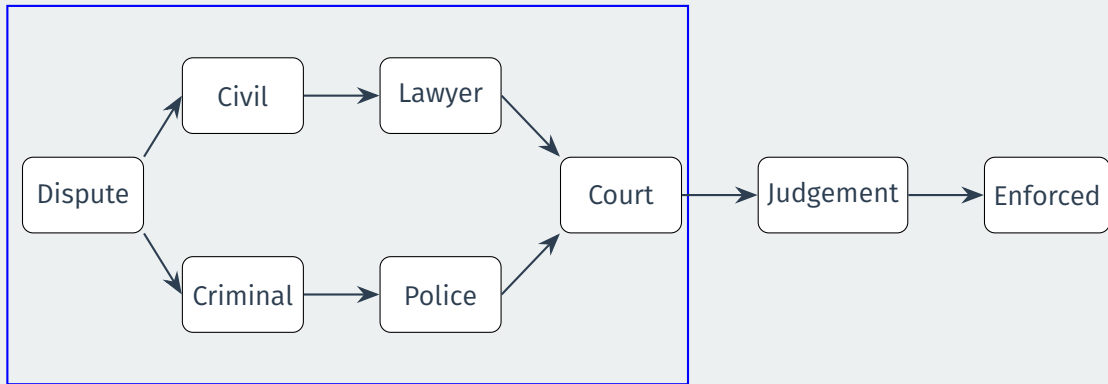
Path to Justice



Path to Justice



Path to Justice



Theoretical Framework

- Politicians can influence the process how a legal system acquires its cases

Theoretical Framework

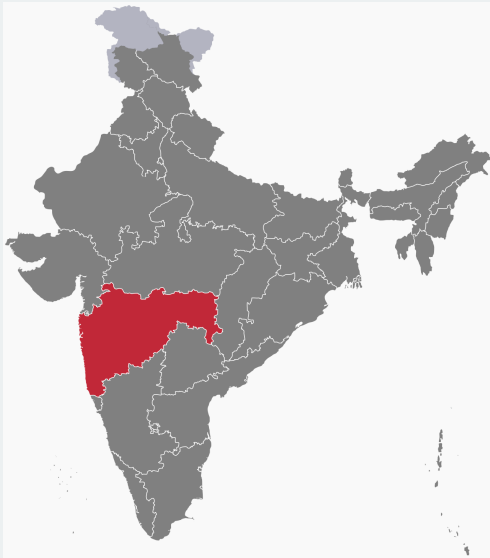
- Politicians can influence the process how a legal system acquires its cases
- **Initial Advisors:** Confidant, legal remedies, informal mediation

Theoretical Framework

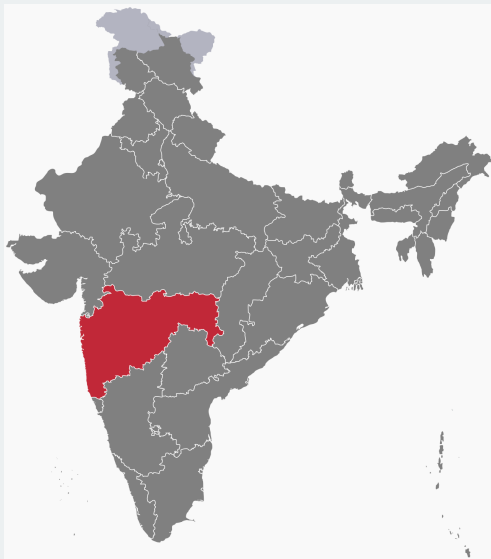
- Politicians can influence the process how a legal system acquires its cases
- **Initial Advisors**: Confidant, legal remedies, informal mediation
- **Recording (Criminal only)**: Pressure authorities to register complaints

2/ Context

Context: Maharashtra, India



Context: Maharashtra, India

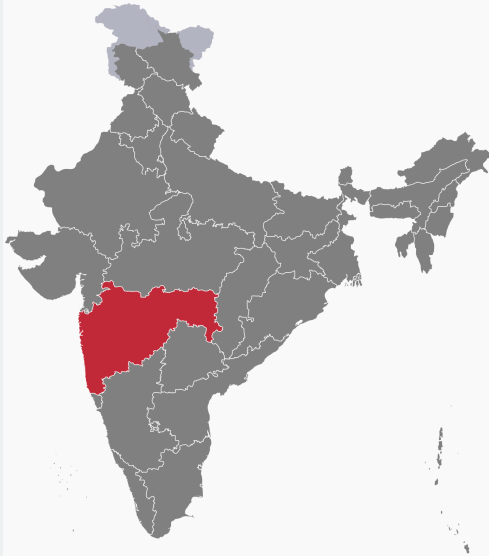


The New York Times

'A Lifelong Nightmare': Seeking Justice in India's Overwhelmed Courts

With 50 million criminal and civil cases pending, it would take 300 years to clear the country's judicial backlog.

Context: Maharashtra, India



The New York Times

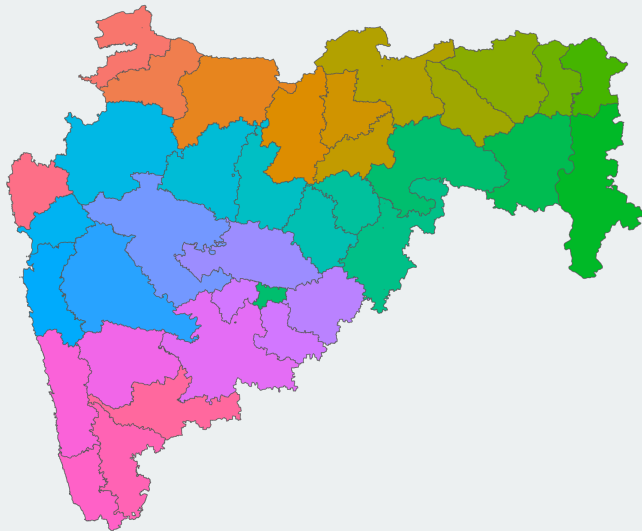
'A Lifelong Nightmare': Seeking Justice in India's Overwhelmed Courts

With 50 million criminal and civil cases pending, it would take 300 years to clear the country's judicial backlog.

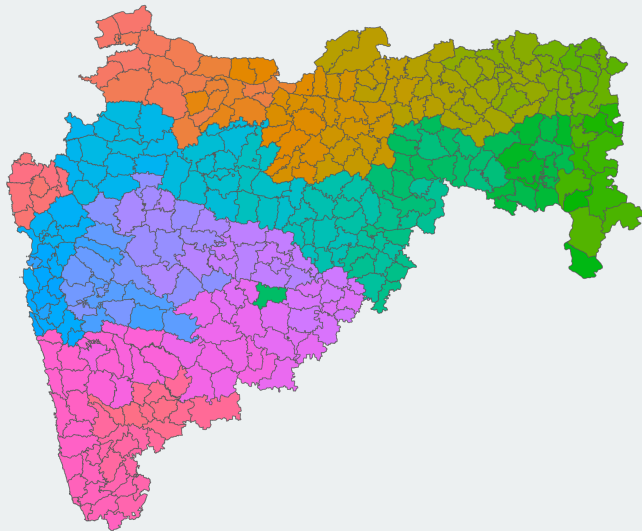


Context: Maharashtra, India

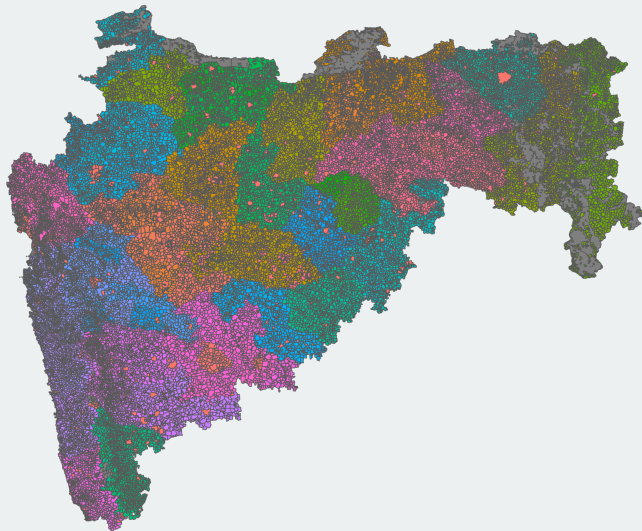
Context: Maharashtra, India



Context: Maharashtra, India



Context: Maharashtra, India



Context: Maharashtra, India



3/ Big Data and Causal Inference

Data

- 3.7 million cases (2015-2022)

Data

- 3.7 million cases (2015-2022)
- Case metadata and progress

District and Session Court ,Dhule				
Case Details				
Case Type	: R.C.A.			
Filing Number	: 100160/2013	Filing Date:	21-11-2013	
Registration No.	: 100160/2013	Registration Date:	21-11-2013	
CNR NO	: MHDH01-403184-2013 (Note the CNR number for future reference)			
View QR Code / Cause File				
Case Status				
First Hearing Date	: 21st November 2013			
Decision Date	: 23rd April 2019			
Case Status	: CASE DISPOSED			
Nature of Disposal	: Contested- DISMISSED			
Court No. and Judge	: 1-Principal District and Sessions Judge Dhule			
Petitioner and Advocate				
1) Anup Singh Jinaga Pawara Advocate- A.S.Jagdeo				
Respondent and Advocate				
1) State of Maharashtra Advocate - B. B. Borse				
Acts				
Under Act(s)		Under Section(s)		
CODE OF CIVIL PROCEDURE		41Rule1		
Subordinate Court Information				
Court No. and Name	: Jt. Civil Court S.D. Dhule			
Case No. and Year	: R.C.S. - 0200049 - 2004			
Case Decision Date :	: --			
IA Details				
IA Number	Party	Date of Filing	Next Date	IA Status
History of Case Hearing				
Registration No.	Judge	Business On Date	Hearing Date	Purpose of hearing
100160/2013				Disposed
100160/2013	Adhoc District Judge 2 and Assistant Sessions Judge, Dhule	21-11-2013	08-01-2014	Notice Unready
100160/2013	Adhoc District Judge 2 and Assistant Sessions Judge, Dhule	08-01-2014	24-02-2014	Notice Unready

Data

- 3.7 million cases (2015-2022)
- Case metadata and progress
- Data on census, local elections 2018-2022

District and Session Court ,Dhule

Case Details

Case Type	: R.C.A.		
Filing Number	: 100160/2013	Filing Date:	21-11-2013
Registration No.	: 100160/2013	Registration Date:	21-11-2013
CNR NO	: MHDH01-403184-2013 <i>(Note the CNR number for future reference)</i>		
View QR Code / Cause File			

Case Status

First Hearing Date	: 21st November 2013
Decision Date	: 23rd April 2019
Case Status	: CASE DISPOSED
Nature of Disposal	: Contested- DISMISSED
Court No. and Judge	: 1-Principal District and Sessions Judge Dhule

Petitioner and Advocate

1) Anup Singh Jinaga Pawara Advocate- A.S.Jagdeo

Respondent and Advocate

1) State of Maharashtra Advocate - B. B. Borse

Acts

Under Act(s)	Under Section(s)
CODE OF CIVIL PROCEDURE	41Rule1

Subordinate Court Information

Court No. and Name	: Jt. Civil Court S.D. Dhule
Case No. and Year	: R.C.S. - 0200049 - 2004
Case Decision Date :	: --

IA Details

IA Number	Party	Date of Filing	Next Date	IA Status
-----------	-------	----------------	-----------	-----------

History of Case Hearing

Registration No.	Judge	Business On Date	Hearing Date	Purpose of hearing
100160/2013				Disposed
100160/2013	Adhoc District Judge 2 and Assistant Sessions Judge, Dhule	21-11-2013	08-01-2014	Notice Unready
100160/2013	Adhoc District Judge 2 and Assistant Sessions Judge, Dhule	08-01-2014	24-02-2014	Notice Unready

Goal

- Can adding additional politicians to village council increase case filings?

Goal

- Can adding additional politicians to village council increase case filings?
- Ideal experiment: additional politicians randomly assigned to villages

Goal

- Can adding additional politicians to village council increase case filings?
- Ideal experiment: additional politicians randomly assigned to villages
- Population-based thresholds determine council size

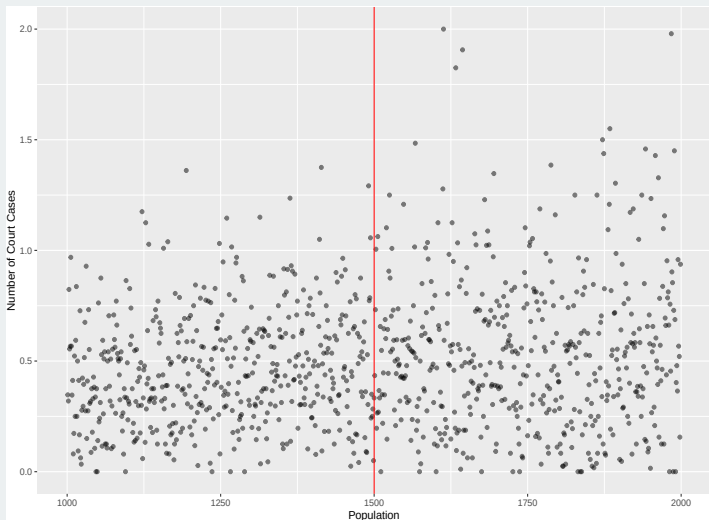
Goal

- Can adding additional politicians to village council increase case filings?
- Ideal experiment: additional politicians randomly assigned to villages
- Population-based thresholds determine council size

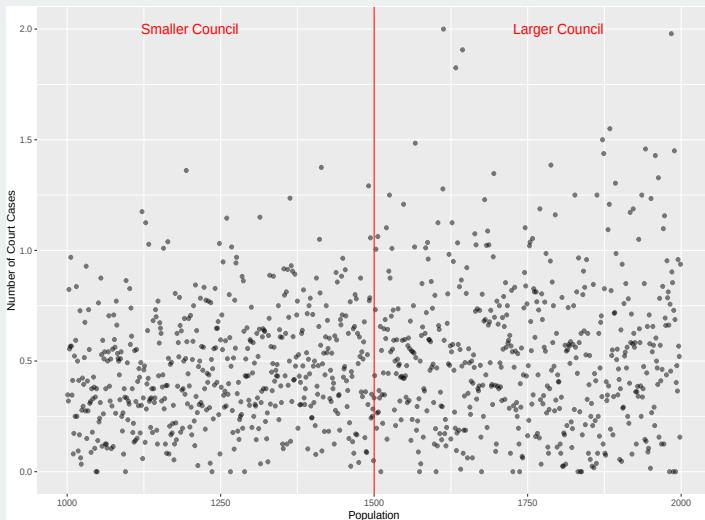
Population	Number of Council Members
<1500	7
1500-3000	9
3000-4500	11
4500-6000	13
6000-7500	15
>7500	17

Empirical Strategy: Regression Discontinuity Design

Empirical Strategy: Regression Discontinuity Design



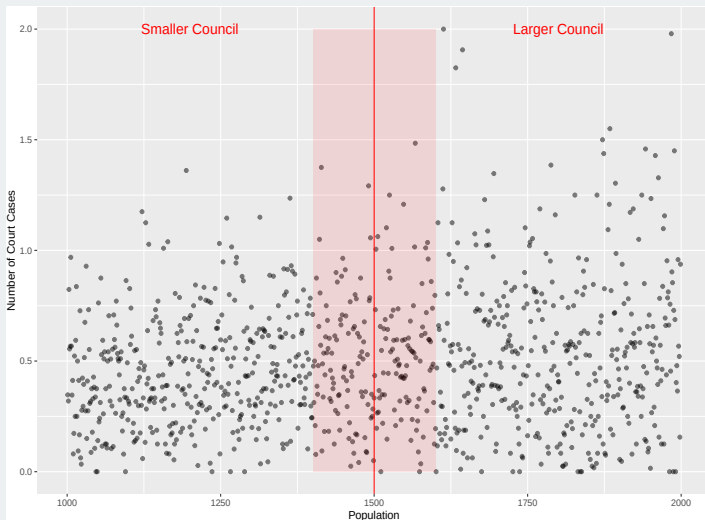
Empirical Strategy: Regression Discontinuity Design



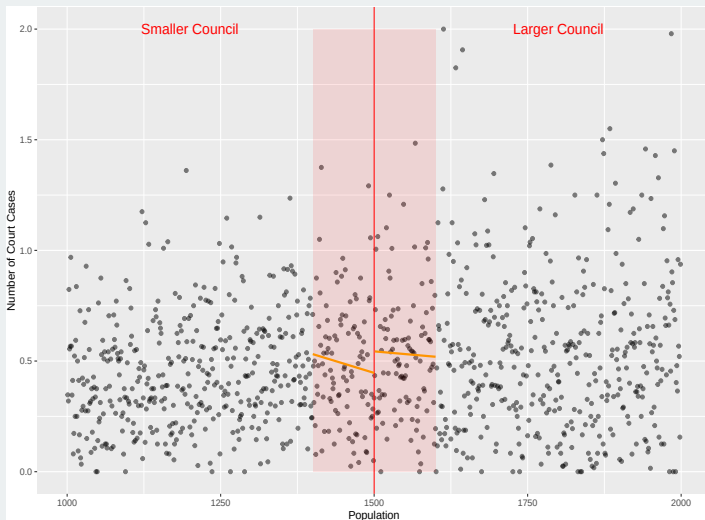
Empirical Strategy: Regression Discontinuity Design



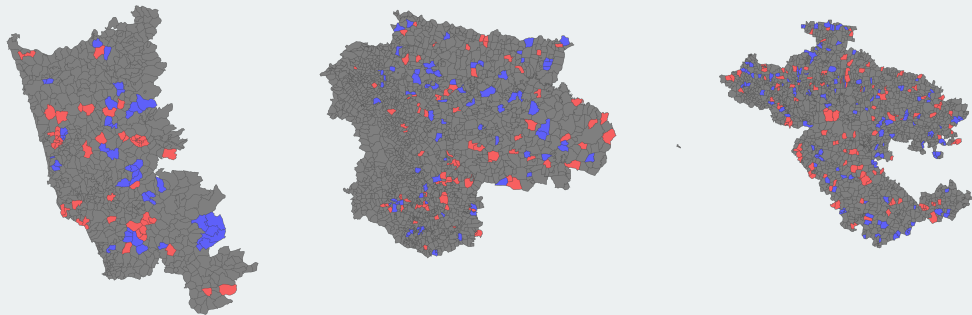
Empirical Strategy: Regression Discontinuity Design



Empirical Strategy: Regression Discontinuity Design



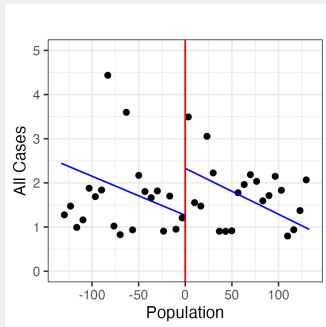
Councils with Additional Politicians



4/ Politicians Help Citizens Access Justice

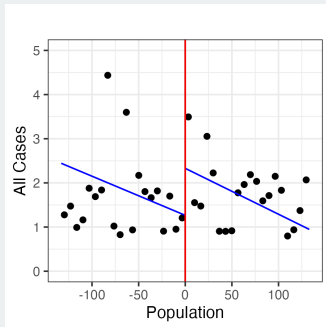
Politicians Help Citizens Access Justice

Politicians Help Citizens Access Justice

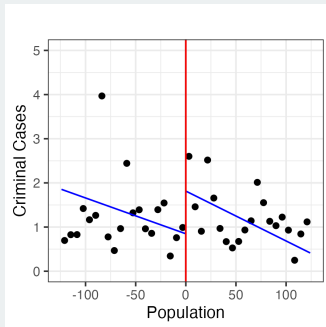


82% increase

Politicians Help Citizens Access Justice

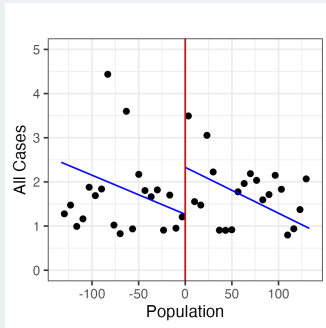


82% increase

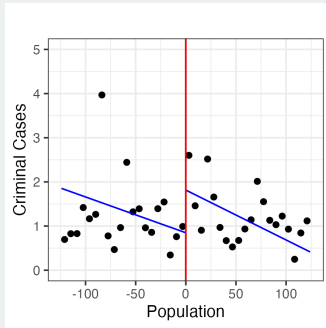


112% increase

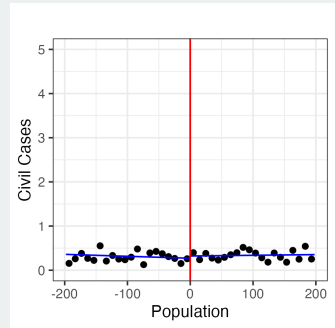
Politicians Help Citizens Access Justice



82% increase



112% increase



No change

Qualitative Evidence: 19 council members

- Civil & criminal cases: evidence of conditional interaction with the police



Qualitative Evidence: 19 council members

- Civil & criminal cases: evidence of conditional interaction with the police
- “Council members try to solve the dispute at the village level itself. In the case of a big crime, police will get involved”



Qualitative Evidence: Field Notes from Bussell (2020)

- 14 council presidents 'shadowed' by RAs; 6 out of 14 directly interacted with the police



Qualitative Evidence: Field Notes from Bussell (2020)

- 14 council presidents 'shadowed' by RAs; 6 out of 14 directly interacted with the police
- "President approached by a woman...helped her write an application to the senior police officer"



5/ Mechanisms

How are politicians able to achieve this?

- Decrease in political jurisdictions → increase in representative to citizen ratio

How are politicians able to achieve this?

- Decrease in political jurisdictions → increase in representative to citizen ratio
- Additional human resources increase the council's capacity to serve and help constituents

How are politicians able to achieve this?

- Decrease in political jurisdictions → increase in representative to citizen ratio
- Additional human resources increase the council's capacity to serve and help constituents
- Increasing size of body increases number of

How are politicians able to achieve this?

- Decrease in political jurisdictions → increase in representative to citizen ratio
- Additional human resources increase the council's capacity to serve and help constituents
- Increasing size of body increases number of
 - (1) female members

How are politicians able to achieve this?

- Decrease in political jurisdictions → increase in representative to citizen ratio
- Additional human resources increase the council's capacity to serve and help constituents
- Increasing size of body increases number of
 - (1) female members
 - (2) Members from historically marginalized groups

How are politicians able to achieve this?

- Decrease in political jurisdictions → increase in representative to citizen ratio
- Additional human resources increase the council's capacity to serve and help constituents
- Increasing size of body increases number of
 - (1) female members
 - (2) Members from historically marginalized groups
 - (3) Cases filed by female litigants

How are politicians able to achieve this?

- Decrease in political jurisdictions → increase in representative to citizen ratio
- Additional human resources increase the council's capacity to serve and help constituents
- Increasing size of body increases number of
 - (1) female members
 - (2) Members from historically marginalized groups
 - (3) Cases filed by female litigants
 - (4) Stronger effects after elections

6/ Discussion

Discussion

- Access to justice is a fundamental principle of the rule of law

Discussion

- Access to justice is a fundamental principle of the rule of law
- Especially difficult for rural citizens

Discussion

- Access to justice is a fundamental principle of the rule of law
- Especially difficult for rural citizens
- I develop a theory and empirically show that politicians affect access to justice

Discussion

- Access to justice is a fundamental principle of the rule of law
- Especially difficult for rural citizens
- I develop a theory and empirically show that politicians affect access to justice

Thank you!

Email: bhogale@wisc.edu

Website: <https://salonibhogale.github.io/>

